

DISSENTING OPINION BY SIR CECIL HURST,
COUNT ROSTWOROWSKI AND M. NEGULESCO.

The undermentioned are unable to concur in the opinion rendered by the Court. They can see no adequate reason for holding that the suppression of the private schools effected in Albania in virtue of Articles 206 and 207 of the Constitution of 1933 is not in conformity with the Albanian Declaration of October 2nd, 1921.

The question put to the Court is drafted in such a way that the answer to it must depend on the interpretation to be placed on the first paragraph of Article 5 of the Declaration, but the interpretation is to be arrived at with due regard to the contents of the Declaration as a whole and with due regard to the spirit as well as the letter of Article 5, paragraph 1.

The first paragraph of Article 5 of the Declaration consists of two sentences. The first stipulates that Albanian nationals who belong to racial, religious or linguistic minorities are to enjoy the same treatment and security in law and in fact as other Albanian nationals. The second says that "In particular they [i. e. the members of the minority] shall have an equal right to maintain, manage and control at their own expense or to establish in the future charitable, religious and social institutions, schools and other educational establishments with the right to use their own language and to exercise their religion freely therein."

The construction of the paragraph is clear and simple. The first sentence stipulates for the treatment and the security being the same for the members of the minority as for the other Albanian nationals. The second provides that as regards certain specified matters the members of the minority shall have an equal right. The two sentences are linked together by the words "In particular" (*notamment*). These words show that the second sentence is a particular application of the principle enunciated in the first. If the rights of the two categories under the first sentence are to be the same, the *equal* right provided for in the second sentence must indicate equality between the same two categories, viz. the members of the minority and the other Albanian nationals. The second sentence is added because the general principle laid down in the first sentence mentions only "treatment and security in law and in fact"—a phrase so indefinite that without further words of precision it would be doubtful whether it covered the right to

establish and maintain charitable, religious and social institutions and schools and other educational establishments, but the particular application of the general principle of identity of treatment and security remains governed by the dominating element of equality as between the two categories.

The word "equal" implies that the right so enjoyed must be equal in measure to the right enjoyed by somebody else. "*They shall have an equal right*" means that the right to be enjoyed by the people in question is to be equal in measure to that enjoyed by some other group. A right which is unconditional and independent of that enjoyed by other people cannot with accuracy be described as an "equal right". "Equality" necessarily implies the existence of some extraneous criterion by reference to which the content is to be determined.

If the text of the first paragraph of Article 5 is considered alone, it does not seem that there could be any doubt as to its interpretation. It is, however, laid down in the Opinion from which the undersigned dissent that if the general purpose of the minority treaties is borne in mind and also the contents of the Albanian Declaration taken as a whole, it will be found that the "equal right" provided for in the first paragraph of Article 5 cannot mean a right of which the extent is measured by that enjoyed by other Albanian nationals, and that it must imply an unconditional right, a right of which the members of the minority cannot be deprived.

If that interpretation of Article 5, paragraph 1, is correct, there can be no doubt that the closing of all private schools in Albania in virtue of Articles 206 and 207 of the Constitution of 1933 would not be consistent with the Albanian Declaration of 1921.

The point at issue may shortly be described as being whether the intention of this article in the Albanian Declaration was to rule out discrimination as regards the maintenance and establishment of charitable institutions and schools, etc., or whether the intention was to grant to the minority an unconditional right to maintain and create their own charitable institutions and schools.

The conclusion at which the undersigned have arrived is that it was the former. The view adopted by the Court is that the paragraph intended to confer an unconditional right.

As the opinion of the Court is based on the general purpose which the minorities treaties are presumed to have had in view and not on the text of Article 5, paragraph 1, of the Albanian Declaration, it involves to some extent a departure from the principles hitherto adopted by this Court in the interpretation

of international instruments, that in presence of a clause which is reasonably clear the Court is bound to apply it as it stands without considering whether other provisions might with advantage have been added to it or substituted for it, and this even if the results following from it may in some particular hypothesis seem unsatisfactory.

The conclusion reached by the Court as to the interpretation of this phrase in paragraph 1 of Article 5 may be summarized as follows: Equality in law and fact not merely excludes all discrimination between the majority and the minority, but may necessitate different treatment of the majority and the minority so as to produce an equilibrium between their respective situations. The institutions enumerated in this first paragraph of Article 5 are essential to the minority if that minority is to enjoy the same treatment as the majority. For the same reason the preservation of a right for the minority to maintain private schools is necessary in order to exclude a privileged position for the majority. The phrase "equal right" in the second sentence of paragraph 1 of Article 5 must therefore be interpreted upon the basis that a right for the minority to possess the institutions mentioned in this paragraph of Article 5 must always be recognized.

The undersigned are unable to concur in this view. Article 5 does not constitute a mere repetition of the equality before the law which has already been prescribed by Article 4 of the Declaration. It is intended to complete it. Article 4 prescribes for all Albanian citizens equality before the law and the enjoyment of the same civil and political rights without distinction as to race, language or religion. The value of the addition provided by Article 5 is that it emphasizes the principle that the members of the minority—over and above the theoretical equality mentioned in Article 4—are to enjoy the same *treatment* and the same *security* in law and in fact as the other Albanian nationals: that means that, on the one hand, in actual practice they are to be treated in the same manner as their fellow-nationals and, on the other hand, there is to be given to them equal opportunity to give effect to their rights and to have them respected. This provision, therefore, is intended to reinforce the idea of equality—to exclude an outward equality which would be no more than a platonic or paper equality. It is intended to render the equality effective and real. There is nothing, however, in the wording of the provision to show that this equality in law may be disregarded and replaced by a system of different treatments for the minority and the majority so as to establish an equilibrium between them.

The intention of the authors of the text appears to be that of consolidating the legal situation of the members of the

minority, not that of depriving it of the sound basis provided by equality and of introducing an elusive search after a perfect equilibrium.

Furthermore, the suppression of the private schools—even if it may prejudice to some appreciable extent the interests of a minority—does not oblige them to abandon an essential part of the characteristic life of a minority. In interpreting Article 5, the question whether the possession of particular institutions may or may not be *important* to the minority cannot constitute the decisive consideration. There is another consideration entitled to equal weight. That is the extent to which the monopoly of education may be of importance to the State. The two considerations cannot be weighed one against the other: Neither of them—in the absence of a clear stipulation to that effect—can provide an objective standard for determining which of them is to prevail.

International justice must proceed upon the footing of applying treaty stipulations impartially to the rights of the State and to the rights of the minority, and the method of doing so is to adhere to the terms of the treaty—as representing the common will of the parties—as closely as possible.

If the interpretation of the first paragraph of Article 5 of the Declaration adopted in the Opinion of the Court is well-founded, there is one source of information as to the meaning of the minorities treaties in which one would expect to find this principle clearly enunciated. It is the letter signed by the President of the Peace Conference in Paris in 1919, and addressed to M. Paderewski, the leader of the Polish delegation.

It is common ground that the Albanian Declaration is one of the series of instruments for the protection of minorities, and that the first of these instruments was the Treaty of June 28th, 1919, between the Principal Allied and Associated Powers and Poland.

Albania signed the Declaration of October 2nd, 1921, in order to give effect to the Resolution adopted by the First Assembly of the League in 1920 recommending that if the Baltic and Caucasian States and Albania were admitted to the League they should take steps to ensure the application of the general principles laid down in the minorities treaties.

Albania made no objection to doing so and signed in due course a Declaration which was prepared by the Secretariat and accepted by the Council on October 2nd, 1921.

A comparison of the text of the Albanian Declaration with the Polish Minority Treaty of June 28th, 1919, shows that it follows closely the wording of the latter, just as do the other treaties and declarations for the protection of minorities. Special

provisions applicable only to the particular country concerned figure in most of the treaties and declarations, but there remains a body of stipulations which are common to the whole number, and it is not disputed that the Albanian Declaration conforms to the general type. Some variations of wording were introduced, even in the first paragraph of Article 5, but it is admitted in the Opinion of the Court that these are of secondary importance. They do not affect the point at issue in this case.

Being in conformity with the general type of minority instrument, words and phrases which are common both to the Declaration and to other treaties must be interpreted alike in all; otherwise the obligations of the various Powers bound by such treaties would become divergent.

When the Principal Allied and Associated Powers called on Poland to sign the first of the minority treaties, their purpose was explained at length in the letter from M. Clemenceau to which reference is made above. This letter sets out the reasons which actuated the Principal Allied and Associated Powers in their policy; it calls attention to the various historical precedents; it indicates the grounds on which it has been found necessary to frame articles for the new treaty which differ to some extent from those adopted on previous occasions, and then gives an explanation of the individual clauses of the treaty.

The explanations will be understood more readily if it is remembered that in the Albanian Declaration Article 1 corresponds to Article 1 of the Polish Treaty; Article 2 corresponds to Article 2 of the Treaty, but contains also a special provision as to the family rights of Mohammedans; Article 3 deals with nationality and covers the ground of Articles 3, 4, 5 and 6 of the Treaty. Article 4 corresponds to Article 7 of the Treaty, but contains an additional paragraph as to the introduction of a suitable electoral system. Articles 5 and 6 correspond to Articles 8 and 9 of the Treaty.

Far from supporting the interpretation which the Opinion of the Court places upon Article 5 of the Albanian Declaration, all that the Clemenceau letter says as to Article 8 in the Polish Treaty is as follows:

"Articles 7 and 8 which are in accordance with precedent provide against any discrimination against those Polish citizens who by their religion, their language or their race differ from the large mass of the Polish population."

Not a word is said as to its being the intention of the article to grant an unconditional right to the minority to maintain

institutions and schools. The object is stated to be that of excluding discrimination, i. e. differential treatment. The letter shows in fact that the intention of the provision was exactly what the text implies, viz. a right for the minority equal to that enjoyed by the majority.

The statement in the Clemenceau letter that Articles 7 and 8 of the Polish Treaty are *in accordance with precedent* is also worthy of notice in view of the conclusion reached in the Opinion of the Court that the institutions referred to, including schools, are essential to the minority, and that the right for the minority to possess them must always be recognized.

The earlier part of the Clemenceau letter stresses the fact that the Powers, in framing the Polish Treaty, have been giving effect to principles frequently adopted in European history during the XIXth century. No document, however, which has been brought to the attention of the Court, has mentioned any occasion upon which there have been imposed upon new States, before the date of the Polish Treaty, obligations covering educational matters or conferring upon minorities an unconditional right to maintain institutions of the character referred to in Article 5. If the conclusion reached in the Opinion of the Court is well-founded as to the interpretation of this Article 5, paragraph 1, it is difficult to understand the statement in the Clemenceau letter that this article is "in accordance with precedent".

Among the papers which the Court has had before it in the present case are the various communications which passed between the Secretary-General of the League and the representatives of the Albanian and Greek Governments before the signature of the Albanian Declaration in October, 1921.

As said above, what the Assembly Resolution of 1920 called upon Albania to do if admitted to the League was to ensure the application of the general principles laid down in the minority treaties.

This wording was repeated in the note sent by the Secretary-General of the League to the Albanian Government. The Albanian Government in its reply of February 9th, 1921, said that it adhered entirely to the general provisions concerning minorities, and proceeded to give full information as to the situation in Albania on the subject.

In May, 1921, the Director of the Permanent Greek Secretariat with the League of Nations sent a note to the Secretariat of the League in which the question was raised whether in the case of Albania it would be sufficient to apply only the general principles laid down in the minority treaty. The note went on to urge that in view of the peculiar conditions

in Albania she ought to subscribe to special provisions. It then set out a series of suggestions for inclusion in the proposed Declaration and described them as "*outré les principes généraux inscrits dans les traités de minorités*". The fifth suggestion is worded as follows:

"5° Que tous les ressortissants albanais appartenant à des minorités de race, de religion ou de langue jouissent du *même* traitement et de la même sécurité en droit et en fait que les autres ressortissants albanais, et *qu'ils aient* le droit *d'établir*, d'administrer et de contrôler à leurs propres frais des *institutions* charitables, religieuses ou scolaires de tous degrés avec droit de se servir de leur propre langue et d'exercer leur propre religion librement sans immixtion des autorités, excepté dans le cas d'ordre public."

The general similarity between this suggestion on the one hand and the normal type of minority provision exemplified by Article 8 of the Polish Treaty is remarkable: the difference is that with regard to the establishment of charitable institutions and schools it drops the word "equal". The result would be to confer the right unconditionally.

The Albanian note in reply, after dealing with the general considerations advanced in the Greek note, adds some remarks with regard to each of the Greek suggestions. As to No. 5, all that it says is: "*Le traitement égal en droit et en fait existe pour tous les citoyens albanais sans distinction de religion.*"

It is stated in the Opinion of the Court that the Greek suggestion was not contested by the Albanian Government. The undersigned are unable to accept that view.

The Greek proposal was only made because Greece considered that something going beyond the provision of the normal minority treaty was wanted. To any such stipulations Albania had not been asked by the League to agree, nor had she ever consented to do so. "Equal treatment" was all that the minority treaties required, and the existence of such equal treatment in fact in Albania her note places on record. Her answer cannot be treated as implying the absence of objection to the Greek proposal.

The Declaration framed by the Secretariat, adopted by the Council and signed by Albania, restores the word "equal" and thereby brings the provision on which the decision in this case turns back into line with Article 8 of the Polish Treaty, the article which is described in the Clemenceau letter as "providing against any discrimination".

It is said in the Opinion that there is no practical difference between the Greek suggestion and the clause inserted in the Albanian Declaration as Article 5, paragraph 1. If that argument is sound, it is difficult to see why Greece included

suggestion No. 5 among those to be inserted in the Albanian Declaration as something additional to the general principles of a minority treaty. Greece was herself a signatory of a minority treaty and must have been well aware of the measure of the obligations she had undertaken.

It remains to consider whether the text of the Albanian Declaration, taken as a whole and apart from such indications as exist of the intentions of the minority treaties and declarations in general, affords any support to the view that "equal right" in Article 5 was intended to convey an unconditional right and not to mean that the rights of the minority were to be equal to the rights possessed by the other Albanian nationals.

The Declaration contains no preamble. That source of potential guidance in the interpretation of the instrument is therefore lacking. The provisions affecting the status and the rights of individuals in Albania are to be found in Articles 2, 3, 4, 5 and 6. Article 2 guarantees protection of life and liberty to all the inhabitants of Albania without distinction, with the right to the free exercise of their religion. Article 3 ensures Albanian nationality to all persons born in the territory unless born the nationals of some other State, and to all persons domiciled there before the war if they apply for it. It also gives to Albanian nationals who become Greek by the transfer of certain territory to Greece a right to opt for Albanian nationality.

Article 4 prescribes that all Albanian nationals are to be equal before the law and to enjoy the same political rights. Differences of religion are to be of no account as regards enjoyment of civil and political rights and admission to public functions and to employments.

The element that is common to all these three articles is that they set up a standard which is to be universal. That standard is fixed for everybody, quite irrespective of whether they belong to a minority or not. No doubt they operate so as to protect a member of the minority, but this is due to the fact that such member is an inhabitant of, or was born in, the territory, or is an Albanian citizen, not because he belongs to the minority.

Article 5 is conceived on a different plan; its first sentence confers rights on the members of the minority as such. It introduces a standard of comparison by prescribing that the treatment or the security is to be the same as that enjoyed by the other Albanian nationals. It ceases to prescribe a universal rule, it legislates for the minority alone, but guarantees to them the same treatment and security as is given to

the others. It is left to the State to determine what the measure of that treatment and security is to be.

If the intention of the second sentence: "In particular they [the minority] shall have an equal right....", had been that the right so given should be universal and unconditional, there is no reason why the draftsman should not have dealt with the right to establish institutions and schools in the earlier articles. The draftsman should have dealt with the liberty to maintain schools and other institutions on lines similar to those governing the right to the free exercise of religion, which undoubtedly is conferred as a universal and unconditional right. Instead of doing so the right conferred upon the minority is an "equal" right, and it is conferred by a sentence which—as pointed out in the earlier part of this Dissenting Opinion—is shown by the presence of the words "In particular" (*notamment*) to be a detailed application of the general principle laid down in the sentence which precedes it.

The examination of the text of the Declaration taken as a whole therefore gives no confirmation to the view that it was the intention of the first paragraph of Article 5 to confer an unconditional right.

In the opinion of the undersigned, there are no sufficient reasons for discarding the natural meaning of the words employed in the second sentence of paragraph 1 of Article 5. To interpret the provision as meaning that it confers an unconditional right not merely runs counter to the natural sense of the words but disregards the explanation of the corresponding provision of the Polish Treaty as given in the Clemenceau letter, namely, that it is a prohibition of discrimination. Furthermore, this interpretation takes no sufficient account of the events leading up to the preparation of the text of the Declaration, in particular of the fact that the Greek Government asked for the insertion of a provision which would have conferred an unconditional right and made this request upon the ground that it was necessary in the case of Albania to go beyond the usual provisions of a minority treaty, and of the fact that the Council, instead of inserting the Greek proposal, used a wording on the same lines as that adopted in other minority treaties.

For these reasons the first question put to the Court should, in the opinion of the undersigned, be answered in the affirmative.

(Signed) CECIL J. B. HURST.

(„) M. ROSTWOROWSKI.

(„) DEMETRE NEGULESCO.